

SMALL SERVICES AGREEMENT
(\$0.00 - \$20,000)

THIS AGREEMENT is between APEX Technologies (Consultant/Contractor") and the City of Alamogordo, a New Mexico municipal corporation ("City).

**WHEREAS THE CITY AND THE CONSULTANT/CONTRACTOR DO
MUTUALLY AGREE THAT:**

- 1. Scope of Work.** The Consultant/Contractor shall provide services as shown in Exhibit "A" (the "Work"), see Exhibit "A". The methods and manner Consultant/Contractor uses to accomplish that work are not specified by the City. All work product produced in performance of this agreement are the property of the City and shall be turned over to the City upon request. Nothing produced, in whole or in part, by the Consultant/Contractor under this agreement shall be the subject of an application for copyright or other claim of ownership by or on behalf of the Consultant/Contractor. Consultant/Contractor shall perform the Work in the manner as are customarily performed by one providing such Work in other, same, or similar businesses. Contact person within the City for the purpose of this agreement is: David Kunihiro , 700 Virginia Ave, Alamogordo, NM 88310 575-439-4300
- 2. Compensation.** The City shall pay the Consultant/Contractor for said service \$9,364.36 as shown in Exhibit "A," inclusive of NMGRT (See Exhibit "A"). Said payment to be made by the City upon receipt and certification of an itemized invoice submitted on the Consultant/Contractor's usual billing form to the City of Alamogordo's Finance Department. Payment is due within 30 days of receipt of invoice. The Consultant/Contractor, upon final payment of the amounts due under this Agreement, releases the City, its officers and employees, from all liabilities and obligations arising from or under this agreement, including but not limited to all damages, losses, costs, liability, and expenses, including but not limited to attorneys' fees and costs of litigation that the Consultant/Contractor may incur.
- 3. Term.** The term of this agreement shall be for one (1) year from the date entered below. The agreement shall be automatically renewed for one additional one-year period, unless either party gives thirty (30) days written notice to the other of non-renewal.
- 4. Time of Commencement and Completion.** The Work shall be commenced immediately within and completed within 30 days unless otherwise agreed to by the parties.
- 5. Status of Consultant/Contractor.** The Consultant/Contractor and its agents and employees are independent contractors performing professional services for the City and are not employees of the City of Alamogordo. The Consultant/Contractor and its agents and employees shall not accrue leave, retirement, insurance, bonding, use of City vehicles, or any other benefits afforded to employees of the City as a result of this agreement. The Consultant/Contractor acknowledges that all sums received hereunder are reportable by the Consultant/Contractor for tax purposes, including without limitation, self-employment and business income tax. The Consultant/Contractor agrees not to purport to bind the City unless the Consultant/Contractor has express written authority to do so, and then only within the strict limits of that authority. The

Consultant/Contractor will be responsible for compliance with all applicable laws, rules and regulations involving, but not limited to, employment, labor hours of work, working conditions, payment of wages, payment of taxes, such as unemployment, social security and other payroll taxes including other applicable contributions from such persons when required by law.

6. Indemnification. The Consultant/Contractor shall defend, indemnify and hold harmless the City from all actions, proceeding, claims, demands, costs, damages, attorneys' fees and all other liabilities and expenses of any kind from any source which may arise out of the performance of this agreement, caused by the negligent act or failure to act of the Consultant/Contractor, its officers, employees, servants, subcontractors or agents, resulting in injury or damage to persons or property during the time when the Consultant/Contractor or any officer, agent, employee, servant or subcontractor thereof has or is performing services pursuant to this agreement.

7. Immunity. The parties acknowledge and agree that nothing in the solicitation or this agreement shall be construed as a modification, compromise or waiver by the City of any rights or defenses of any immunities provided by Federal law or the laws of the State of New Mexico to the City or any of its officers and employees, which they may have had, now have or will have with respect to all matters arising out of this agreement. Any liability incurred in connection with this Agreement is subject to the immunities and limitation of the New Mexico Tort Claims Act.

8. Equal Opportunity Compliance. In accordance with all such laws of the State of New Mexico, the Consultant/Contractor assures that no person in the United States shall, on the grounds of race, religion, color, national origin, ancestry, sex, age, physical or mental handicap, or serious medical condition, spousal affiliation, sexual orientation or gender identity, be excluded from employment with or participation in, be denied the benefits of, or be otherwise subjected to discrimination under any program or activity performed under this agreement. If the Consultant/Contractor is found not to be in compliance with these requirements during the life of this agreement, Consultant/Contractor agrees to take appropriate steps to correct these deficiencies.

9. Confidentiality. Any confidential information provided to or developed by the Consultant/Contractor in the performance of this agreement shall be kept confidential and shall not be made available to any individual or organization by the Consultant/Contractor without the prior written approval of the City.

10. Conflict of Interest. The Consultant/Contractor warrants that it presently has no interest and shall not acquire any interest, direct or indirect, which would conflict in any manner or degree with the performance or services required under the Agreement. The Consultant/Contractor certifies that the requirements of the Governmental Conduct Act, Sections 10-16-1 through 10-16-18, NMSA 1978, regarding contracting with a public officer, state employee or former state employee have been followed.

11. Miscellaneous Provisions.

- a. This agreement shall be governed by the laws of the State of New Mexico as to interpretation and performance.
- b. This agreement may be amended only in writing signed by both parties.
- c. This agreement may not be assigned in whole or in part without written consent of the City.

IN WITNESS WHEREOF, the City and the Consultant/Contractor have executed this Agreement as of the dates indicated below.

CONSULTANT/CONTRACTOR

Date: 3/18/24

By: Kevin Tillery
Kevin Tillery, Apex Technologies CEO

NM Taxpayer Identification Number: PPII 1(a)
Taxpayer ID
Federal Taxpayer Identification Number: _____

CITY OF ALAMOGORDO, NEW MEXICO
a New Mexico municipal corporation

Date: 03/18/2024

By: David Kunihiro
David Kunihiro, Chief of Police

ATTEST:

Rachel Hughes
Rachel Hughes, City Clerk

APPROVED AS TO FORM:

Ashley Smith
Ashley Smith, City Attorney

BP
Purchasing Review

Apex Technologies
(575) 527-9070 Office

151 S. Walnut
Las Cruces, NM 88001

Contact: Joshua Tillery: 575-640-2605
E-mail: kevin@apextechnologiesnm.com



March 15, 2024

Proposal To:

Alamogordo Police Department
Alamogordo, NM

RE: Evidence Rooms Cameras and Access Control

Thank you for the opportunity to upgrade your Evidence Rooms at your facility to include two (2) Access Controlled Doors and seven (8) additional IP Cameras.

1. Scope of Work

Apex will install a UL Electric Door Strike at each Hallway Door and RFID Card Reader. These doors will be tied into the existing Access Control System and programmed for restricted entry. APEX will install one 6MP 360 Camera in the processing office and 7 4MP Dome cameras in the Evidence Storage Areas. These cameras will be tied into the existing Video Surveillance System.

2. Pricing

Description	Part number	Qty	Unit Price	Total Price
CAMERAS				
AXIS M3116-LVE (4MP FLAT)	01605-001	7	\$457.00	\$3,199.00
AXIS P3077-PVE (6MP 3600)	02060-001	1	\$762.00	\$762.00
AXIS T8508 PoE+ Network Switch	01191-004	1	\$460.00	\$460.00
Total				\$4,421.00
ACCESS CONTROL				
IoPROX RFID Card Reader		2	\$284.00	\$568.00
HES 1500-630-LMS		2	\$510.00	\$1,020.00
Wire (Camera & Access Control)		1	\$325.00	\$325.00
Misc.(J-Hooks, Tie Wraps, Velcro, Labels, etc.)		1	\$50.00	\$50.00
TOTAL				\$1,963.00
INSTALLATION (LABOR)				

Pull Access wire to all locations (includes moving 1 existing camera)
Install Access Control Door Hardware and RFID Card Readers
Program, install and focus cameras
Program, install door access equipment
Test and verify all equipment and programming
Training

TOTAL		\$2,758.00
NMGRT LABOR ONLY	8.06%	\$222.36

TOTAL PROJECT	\$9,364.36
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3. Warranty

5-year warranty on Cameras, 1-yr warranty on Access Control Equipment, UL Strike with manufacturer warranty, 90-day warranty on labor.

This proposal is valid until April 30th, 2024. The above prices, specifications and conditions are satisfactory and accepted. Apex Technologies is authorized to begin work as specified. Full payment is due upon completion of installation and training. Invoices not paid within 30 days of completion of installation and training are subject to a 1.25% monthly finance charge.

Authorized Customer Representative

Date

Signature: *Barbara Pyeatt*

Email: bpyeatt@ci.alamogordo.nm.us

SMALL SERVICES AGREEMENT

Final Audit Report

2024-03-18

Created:	2024-03-15
By:	Maria Herndon (mherndon@ci.alamogordo.nm.us)
Status:	Canceled / Declined
Transaction ID:	CBJCHBCAABAAkjcUc89CxDNyY0hegwbm76OygnFkUJVm

"SMALL SERVICES AGREEMENT" History

-  Document created by Maria Herndon (mherndon@ci.alamogordo.nm.us)
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-  Document emailed to Barbara Pyeatt (bpyeatt@ci.alamogordo.nm.us) for signature
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 Document declined by Rachel Hughs (rhughs@ci.alamogordo.nm.us)

Decline reason: After I signed it and added the date, it remains on the signature and will not allow me to submit it.

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Redaction Log

Reason	Page (# of occurrences)	Description
no reason	3 (1)	---
PPII 1(a) Taxpayer ID	3 (1)	NMSA 1978 § 14-2-1.1. Personal identifier information, 14-2-6. Definitions F. "protected personal identifier information" means: (1) all but the last four digits of a: (a) taxpayer identification number.